

24SMCV03557 24SMCV03557

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-29

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This is a motion for judgment on the pleadings by plaintiff. Plaintiff, a member of the HOA, claims that there has been a failure of governance. He contends that the HOA has 532 units but that there is a history of neglect. He further alleges that management has stolen \$1.6 million. Plaintiff notes that a verified answer was filed but that defendants claimed to lack sufficient information to admit or deny the allegations 94 times and that in other instances, defendant contended that it did not have to admit or deny an allegation. Plaintiff also states that defendant spoliated evidence and that in a prior case, the HOA was found to have violated its governing documents. Because of this, plaintiff argues that the court should deem all of the allegations in the complaint to be admitted, and therefore, he concludes, he wins on the pleadings. Defendant contends that the argument lacks merit. What the defense argues is that this is plaintiff's attempt to relitigate a case he already lost and that the real motive here is to forestall foreclosure of a lien against him because he is delinquent in paying his HOA dues. As to affirmative defenses (upon which plaintiff also seeks judgment), the defense argues that the pleading requirements are not as stringent as they are for a complaint, and that the answer pleads enough. Finally, defendant contends that there is no "sham pleading" problem in the answer. In reply, plaintiff contends that this case is different than the earlier case, and that service by defendant has been defective. Plaintiff argues that in the prior litigation, the trial court held that there was no claim preclusion, and that ought to bind defendant here and bar that affirmative defense. Plaintiff also reiterates that the lack of information and belief is bad faith.

The way to attack the "information and belief" issue is

through demurrer, not an MJOP. While the two motions are similar, the office of the MJOP is more merits based and not technical. And even were plaintiff correct as to the "information and belief" point, the result would not be a judgment or to deem the allegations admitted; it would be to give defendant leave to amend. The same is true of the claims that the affirmative defenses are not pled with sufficient particularity. The court also notes that it will not consider new arguments raised for the first time in reply.

The motion is DENIED.

The matter is also hear on plaintiff's ex parte application to file an overlength brief.

Although the court rarely does so, the court will GRANT the request to file an overlength brief in support of the preliminary injunction motion. The brief may not exceed a total of 17.5 pages, excluding the cover page, tables, and proof of service. Plaintiff has stated that he intends to use normal margins and font and spacing (24 lines/page), and it is on that basis the court is making its ruling. The opposition may also be 17.5 pages in length. The reply will be the normal 10 pages. The court will not hear argument on this matter today.